

26CV00527 Wells Fargo Bank, N.A. v. Erika L. Ledesma

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-08-19

Motion: Plaintiff Wells Fargo Bank, N.A.'s Motion for Summary Judgment

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Tentative Ruling: Wells Fargo Bank, N.A. v. Erika L. Ledesma

Case Number

26CV00527

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 08/19/2026 - 10:00

Nature of Proceedings

Plaintiff Wells Fargo Bank, N.A.'s Motion for Summary Judgment

Tentative Ruling

For Plaintiff Wells Fargo Bank, N.A.: Jon O. Blanda, Edgar B. Lopez.

For Defendant Erika L. Ledesma: Self Represented.

RULING

For the reasons set forth herein, Plaintiff's motion for summary judgment is GRANTED. The Court has reviewed the proposed judgment submitted by Wells Fargo and intends to sign it. The Trial Date of 9/21/26 is vacated.

Background

This action commenced on January 26, 2026, by the filing of the complaint by Plaintiff Wells Fargo Bank, N.A. (Wells Fargo) against Defendant Erika L. Ledesma (Ledesma) for breach of contract.

Wells Fargo alleges that on December 30, 2019, Ledesma entered into a contract with Wells Fargo to issue a credit card to Ledesma, which Ledesma accepted and used to purchase goods, services, and for cash advances. Ledesma agreed to repay the principal along with interest and other charges.

Wells Fargo alleges that On December 2, 2025, Ledesma breached the agreement by failing to remit any further payments on the account and that Ledesma owes Wells Fargo \$6,419.04.

On February 24, 2026, Ledesma answered the complaint with a general denial and four affirmative defenses.

In March 2026, Wells Fargo propounded requests for admission (RFAs) on Ledesma, consisting of nine requests:

"Admit Plaintiff WELLS FARGO BANK, N.A. ('Wells Fargo') issued you, ERIKA L LEDESMA ('You') a Wells Fargo Credit Card ending in 7579."

"Admit that You were to repay the principal amount You charged on your Wells Fargo Credit Card ending in 7579 plus finance charges."

"Admit that You, or others authorized by you, were the only person who used your Wells Fargo Credit Card ending in 7579 to make charges."

"Admit that You received monthly statements from Wells Fargo for your Wells Fargo Credit Card ending in 7579."

"Admit that You never disputed the accuracy of any of the monthly billing statements for your Wells Fargo Credit Card ending in 7579."

"Admit that You currently owe \$6419.04 on your Wells Fargo Credit Card ending in 7579."

"Admit that your last payment on your Wells Fargo Credit Card ending in 7579 was on 11/2/2025."

"Admit that Exhibit '1', attached hereto and incorporated by reference is a true and correct copy of the last monthly billing statement sent to YOU for your Wells Fargo Credit Card ending in 7579."

"Admit that You do not have any defenses to Plaintiff's Complaint."

(Lopez decl., ¶ 3 & Exh. 1.)

On March 24, 2026, Ledesma provided verified responses to the RFAs, admitting all the requests other than RFA No. 9, to which she replied: "Defendant admits the existence of the account but reserves the right to seek settlement due to financial hardship." (Lopez decl., ¶ 4 & Exh. 2.)

Wells Fargo now moves for summary judgment.

The motion was properly and timely served, via U.S. Mail on April 23, 2026. Ledesma has not filed opposition or any other response to the motion.

Analysis

Standard on Summary Judgment

"A party may move for summary judgment in an action or proceeding if it is contended that . . . there is no defense to the action or proceeding." (Code Civ. Proc., § 437c, subd. (a)(1).)

"[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) There is no obligation on the opposing party to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element necessary to sustain an adjudication in his favor. (Consumer Cause, Inc. v. Smilecare (2001) 91 Cal.App.4th 454, 468.)

Plaintiff's Burden

"[S]ummary judgment law in this state no longer requires a Plaintiff moving for summary judgment to disprove any defense asserted by the Defendant as well as prove each element of his own cause of action. In this particular, it now accords with federal law. All that the Plaintiff need do is to 'prove[] each element of the cause of action.' (Code Civ. Proc., § 437c, subd. (o)(1).)" (Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 853.)

"A Plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the Plaintiff or cross-complainant has met that burden, the burden shifts to the Defendant or cross-Defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The Defendant or cross-Defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(1).)

As Wells Fargo is the moving party, it must prove each element of its causes of action. Once it has done so, the burden shifts to Arroyo to show that there is a triable issue of one or more material facts.

Breach of Contract

"To prevail on a cause of action for breach of contract, the Plaintiff must prove (1) the contract, (2) the Plaintiff's performance of the contract or excuse for nonperformance, (3) the Defendant's breach, and (4) the resulting damage to the Plaintiff." (Richman v. Hartley (2014) 224 Cal.App.4th 1182, 1186.)

"A contract is either express or implied. (Civ. Code, § 1619.) The terms of an express contract are stated in words. (Civ. Code, § 1620.) The existence and terms of an implied contract are manifested by conduct. (Civ. Code, § 1621.) The distinction reflects no difference in legal effect but merely in the mode of manifesting assent. [Citation.] Accordingly, a contract implied in fact " 'consists of obligations arising from a mutual agreement and intent to promise where the agreement and promise have not been expressed in words.' " [Citation.]" (Retired Employees Assn. of Orange County, Inc. v. County of Orange (2011) 52 Cal.4th 1171, 1178.)

By way of its separate statement of undisputed material facts (UMFs), Wells Fargo claims:

"Defendant applied for and was issued a Wells Fargo credit card ('Subject Account') ending in 7579."

"Plaintiff sent Defendant the credit card along with the written Customer Agreement associated with the credit card."

"Defendant accepted the terms of the written agreement when they used the Wells Fargo Visa Credit Card."

"Pursuant to the terms of the Customer Agreement associated with the card, Plaintiff would extend credit to Defendant whereby Defendant could charge goods, services, or obtain cash advances on the credit line."

"In exchange, Defendant was to repay the principal amount lent plus applicable interest and finance charges."

"In accordance with the Customer Agreement, Defendant used the account, and made payments, charges, and incurred a balance thereon."

"Plaintiff sent Defendant monthly statements of the Subject Account each and every billing period."

"The statements of the account reflected all charges, payments, minimum payment due that billing period, and any fees and interest incurred for each billing period."

"Moreover, there is no record of any unresolved disputes on the account."

"There is no record of any active lawsuits against Wells Fargo Bank, N.A. for unresolved disputes on this credit card account."

"Defendant's last payment on the Subject Account was November 2, 2025."

"Thereafter, no further payments were made by the Defendant, and therefore, pursuant to the terms of the Customer Agreement, Defendant was in default."

"The balance due on Defendant's Subject Account is \$6,419.04."

"As a result of Defendant's unpaid balance, Plaintiff has been damaged in the sum of \$6,419.04."

"Defendant admitted all of the above facts in response to Plaintiff's Request for Admissions."

Wells Fargo has produced evidence of the truth and accuracy of each of the UMFs; most persuasively by Ledesma's own verified responses to the RFAs. Each element of breach of contract is addressed, and Wells Fargo has provided undisputed evidence proving each element. As such, Wells Fargo has shown entitlement to summary judgment.

Wells Fargo seeks costs in the amount of \$725.00 for filing fees associated with the complaint and the present motion. On April 24, 2026, Wells Fargo filed its memorandum of costs, showing that the memorandum was served on Ledesma on April 23, 2026. Ledezma has not filed a motion to strike costs, or any other document challenging the claimed costs, and the time to do so has elapsed.

Wells Fargo will be awarded the requested costs.

The Court has reviewed Wells Fargo's proposed Order and proposed Judgment and intends on executing the same.

Judges

Judge Thomas Anderle

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